

23STCV24664 23STCV24664

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 23STCV24664 Hearing Date: July 22, 2026 Dept: 732

Royce Choi, et al. v. Fletcher Bend, LLC, et al.

Wednesday, July 22, 2026

CASE NUMBER: 23STCV24664

UNOPPOSED

James River Insurance Company's Motion for Leave to Intervene

Facts: This is an action for construction defects. The Complaint alleges as follows. Plaintiffs Royce Choi, Richard & Ana Hogben, David Lim, Clifford Ho & Janice Kim, Benjamin Kvalo, Sang & Olivia Lee ("Plaintiffs") purchased homes built by Defendant Fletcher Bend, LLC. (Complaint ¶¶ 3–8.) The homes were defective in their construction. (Complaint ¶¶ 10–11.)

Procedural History: Plaintiffs filed the Complaint on September 8, 2023, alleging one cause of action for violation of building standards under Civil Code § 896.

Heyday Development Corporation was added as a Doe Defendant on January 28, 2025.

Defendants Fletcher Bend, LLC and Heyday Development Corporation filed a Cross-Complaint on June 24, 2025, against Cross-Defendants Acetek Roofing, Co., Inc., GM Plaster, G & M Plastering, Inc. Rick's Raingutter Service, and Wehmer Framing, Inc., alleging three causes of action:

Equitable Indemnity

Declaratory Relief

Contribution

On July 6, 2026, this court granted Cross-Defendant Wehmer Framing's motion to compel responses to form and special interrogatories and requests for production from defendant and cross-complainant Heyday Development Corporation.

On July 14, 2026, this court granted Cross-Defendant Wehmer Framing's motion for leave to file Cross-Complaint.

James River Insurance Company filed the present motion for leave to intervene on June 24, 2026. No opposition has been filed.

Analysis

The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:

(A) A provision of law confers an unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

(Code Civ. Proc. § 387, subd. (d)(1).)

The above provisions describe the circumstances where leave to intervene is mandatory. Discretionary intervention, however, is appropriate "(1) where the proposed intervenor has a direct interest, (2) intervention will not enlarge the issues in the litigation, and (3) the reasons for the intervention outweigh any opposition by the present parties." (*Lindelli v. Town of San Anselmo* (2006) 139 Cal.App.4th 1499, 1504.)

Nonparty insurer James River Insurance Company ("JRIC") seeks leave to intervene on the following basis. JRIC is the liability insurer of both Defendants Fletcher Bend LLC and Heyday Development Company. (Bubion Decl. ¶ 7.) However, since providing representation and filing answers on both Defendants' behalf, Defendants' counsel has been unable to maintain contact with Defendants' principal, Hardy Wronske. (Bubion Decl. ¶ 6.) JRIC thus seeks leave to intervene to protect its interests in this litigation. (Motion at pp. 5–6.)

Insurance Code § 11580 states that each liability insurance policy must contain, and shall be interpreted to contain, "[a] provision that whenever judgment is secured against the insured or the executor or administrator of a deceased insured in an action based upon bodily injury, death, or property damage, then an action may be brought against the insurer on the policy and subject to its terms and limitations, by such judgment creditor to recover on the judgment." (Ins. Code § 11580, subd. (b)(2).) Accordingly, an insurer may be granted leave to intervene to prevent a default judgment being taken against its insured that the insurer would be called upon to satisfy. (*Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 385 ["We conclude that intervention by an insurer is permitted where the insurer remains liable for any default judgment against the insured, and it has no means other than intervention to litigate liability or damage issues."].)

JRIC has shown that it possesses a direct interest in this litigation. Intervention is unlikely to enlarge the issues involved in this litigation, as the defenses asserted will likely be those applicable to Defendants themselves, who have dropped out of contact with their counsel in this case. No party has filed an opposition to the present motion.

The motion is therefore GRANTED. JRIC shall file an answer in intervention within ten days of this order.

Superior Court of California

County of Los Angeles

Department 732

ROYCE CHOI, et al.,

Plaintiffs

v.

FLETCH BEND, LLC, et al.,

Defendants.

AND RELATED CROSS-ACTIONS

Case No.: 23STCV21664

Hearing Date: July 22, 2026

[TENTATIVE] RULING RE:

James River Insurance Company's Motion for Leave to Intervene.

James River Insurance Company's Motion for Leave to Intervene is GRANTED. Intervenor shall file an answer in intervention within ten days of this order.

Cross-Defendant to give notice.

Dated: July 22, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court